LAWS1150|JURD7150 Principles of Private Law

Mid-Term Assignment – Trimester 3, 2026

Instructions

The assignment is worth 30 percent of the final mark for Principles of Private Law.

The assignment is designed to test your legal knowledge, reasoning, critical thinking, and writing skills. You are required to identify the legal issues raised by the scenario and apply the relevant law, reaching conclusions or tentative conclusions. Where you decide that further information beyond that provided in the scenario would clarify your advice, then you may indicate what further information you require and how it would impact your conclusion. You are expected to set out your reasoning to justify your conclusions.

You may assume the facts provided in the scenario to be proven. You are not required to provide an assessment as to the amount of any award of damages (if/where damages are relevant). You are partly being assessed on your writing and your ability to communicate clearly. As such, you should avoid unnecessary jargon. However, you may assume that the reader is legally trained and may, for example, use terms like 'consideration' and 'privity' without having to explain them. For this assignment, you are not being assessed on your ability to communicate clearly to non-lawyers (which can be the case for other assignments).

Your answer will be marked against the following criteria:

- the extent to which it identifies the legal issues raised by the scenario;
- the extent to which it correctly identifies the law relevant to those particular issues, and not just the law in general terms;
- how well the law is applied to the facts;
- the strength and persuasiveness of the argument and the clarity of the analysis;
- whether the conclusions are logical and adequately reasoned;
- how well it identifies and addresses any areas of uncertainty (if relevant);
- how well issues are prioritised;
- the quality of the writing and the clarity of expression;
- whether the layout and structure are logical and easy to follow; and
- whether sources are acknowledged appropriately and cited correctly in accordance with the *Australian Guide to Legal Citation* (Melbourne University Law Review Association, 4th ed, 2018) ('*AGLC*').

More detailed instructions are provided below.

Format

Your assignment should be typed, double spaced and 12 pt font (Times New Roman, Arial, or Calibri). Please include page numbers and leave margins to allow for comments. You must use footnote references for all sources and comply with the *AGLC* for footnote style.

You must only submit your answer as a MS Word document (.doc or .docx). UNSW provides free access to MS Word to all students. See UNSW IT here. Do NOT submit your answer as an Apple Pages file (Turnitin cannot read Pages files). Do NOT submit your answer as a PDF unless there is a good reason why you cannot submit a MS Word document.

You are allowed ONE submission only. It is your responsibility to upload the correct document. Markers will assess the document that is submitted.

Word Count

Your response should be no more than 1,500 words. Students must state the actual word count on the assignment. The word limit is calculated by reference to all text in the assignment, excluding footnotes. Footnotes should be used only for the citation of the relevant sources. Discursive text in footnotes is included in the word count.

Penalties for any words exceeding this word limit will be imposed according to the UNSW Law & Justice Assessment Procedure and Student Information document (available on the Moodle page for this course).

You should:

- avoid wasting words by displaying knowledge that is very general and does not address the question you are seeking to answer; and
- edit your answers to ensure that they respond clearly and directly to the question and with an efficient use of words.

You should NOT:

- attach a coversheet;
- include any unnecessary titlepage or headers/footers;
- rely on extended quotations (rather than your own analysis);
- use bullet/numbered points rather than complete sentences and paragraphs; nor
- include a bibliography or reference list.

Scope of the Assignment

You are only required to address issues raised in the 'Contracts' part of the course up to the end of Week 4 (that is, material up to and including 'Privity'), although answering the question will not necessarily require you to address every topic covered in that period.